

SOFTWARE LICENSE AND SERVICES AGREEMENT

PARTIES

This Software License and Services Agreement ('Agreement') is entered into as of January 15, 2025, by and between:

VENDOR: TechNova Solutions, Inc.

Address: 1200 Innovation Drive, Suite 400, Austin, TX 78701

Contact: contracts@technovasolutions.com

Represented by: Sarah Chen, VP of Enterprise Sales

CLIENT: Acme Corporation ('Client')

Address: 500 Main Street, Atlanta, GA 30301

CONTRACT DETAILS

Contract Type: Software License & Professional Services

Contract ID: TNS-2025-0042

Effective Date: February 1, 2025

Expiration Date: January 31, 2026

Total Contract Value: USD \$95,000

Breakdown:

- Annual Software License Fee: \$70,000
- Implementation Services: \$15,000 (one-time)
- Annual Support & Maintenance: \$10,000

PAYMENT TERMS

Payment Schedule: Annual (12-month billing cycle)

Payment Terms: Net-30 from date of invoice

Currency: United States Dollar (USD)

Invoice Schedule:

- Implementation fee invoiced upon contract signature
- Annual license fee invoiced on February 1, 2025
- Support fee invoiced on February 1, 2025

SERVICE LEVEL AGREEMENT

Uptime Guarantee: 99.95% measured monthly

Scheduled Maintenance: Sundays 2:00 AM - 4:00 AM ET (excluded from SLA)

Incident Response Times:

- Priority 1 (Critical): Response within 1 hour, resolution within 4 hours
- Priority 2 (High): Response within 4 hours, resolution within 8 hours
- Priority 3 (Medium): Response within 1 business day

SLA Credits: If uptime falls below 99.95%, Client receives credit equal to 10% of monthly fee for each 0.1% below SLA, up to 50% monthly fee.

Support Hours: 24/7 for P1 incidents; business hours (9am-6pm ET) for others.

TERM AND TERMINATION

Initial Term: 12 months from Effective Date

Renewal: This Agreement will automatically renew for successive 1-year terms unless either party provides 60 days written notice of non-renewal.

Termination for Convenience: Either party may terminate with 30 days notice.
Termination for Cause: Either party may terminate immediately upon material breach that remains uncured after 30 days written notice.

LIABILITY AND INDEMNIFICATION

Limitation of Liability: Each party's total liability shall not exceed the aggregate fees paid in the 12 months preceding the claim.

Indemnification: Mutual indemnification for IP infringement claims.
TechNova indemnifies Client against third-party IP infringement claims arising from use of the licensed software.

GOVERNING LAW

This Agreement is governed by the laws of the State of Delaware, USA.
Disputes shall be resolved through binding arbitration in Delaware, under JAMS Comprehensive Arbitration Rules.

SIGNATURES

IN WITNESS WHEREOF, the parties have executed this Agreement.

TechNova Solutions, Inc.:

Signature: _____ Date: January 15, 2025

Name: Sarah Chen, VP Enterprise Sales

Acme Corporation:

Signature: _____ Date: January 15, 2025

Name: Michael Torres, CFO